

21STCV03737 21STCV03737

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-08-11

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Case Number: 21STCV03737 Hearing Date: August 11, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

August 11, 2026

CASE NUMBER

21STCV03737, related to 21STCV02841

MOTION

Motion to Quash Subpoena

MOVING PARTY

Defendant, Cross-Complainant, and Cross-Defendant Paragon

Resources Incorporated

OPPOSING PARTY

Defendant and Cross-Defendant Julian Ledesma

MOTION

Defendant,
Cross-Complainant, and Cross-Defendant Paragon Resources Incorporated
("Paragon") moves to quash a deposition notice Defendant and Cross-Defendant
Julian Ledesma ("Ledesma") served for the deposition of Deponent Ken Blackman
("Deponent"). Ledesma opposes the
motion.

ANALYSIS

Code of Civil Procedure section 2025.420[1]
provides, "The court, for good cause shown, may make any order that justice
requires to protect any . . . deponent . . . from unwarranted annoyance,
embarrassment, or oppression, or undue burden and expense"

Paragon argues the deposition notice does not
comply with section 2025.220 on several grounds. Pursuant to that discovery statute, a notice
of deposition must state the date, time, and place where the deposition will take
place. (§ 2025.220, subd. (a)(1).) Paragon argues the deposition notice is
defective because it does not specify an address where the deposition will take
place. However, the deposition notice
specifies the deposition will be via Zoom.
As such, no physical address is required.

Paragon contends the deposition notice is defective
because it does not include disclosure of the existence of a contractual
relationship between Ledesma and the deposition officer or entity providing the
services of the deposition officer. (§
2025.220, subd. (a)(8).) However, if no
relationship exists, no disclosure is necessary.

Paragon maintains the deposition notice is
improperly drafted under section 2025.230.

If a deponent is a corporation or other entity, the deposition notice
must describe with "reasonable particularity" the matters on which questions
will be asked so the deponent can designate the "most qualified" persons to
testify on its behalf. (§ 2025.230.) In this instance, however, Ledesma noticed the deposition of Deponent,
who is not an entity. As such, the Court
agrees Ledesma's reference in the notice to section 2025.230 is improper. In any event, Paragon cites no authority
under which Deponent may avoid being deposed because of this erroneous

reference, when the deposition notice specifies Ledesma intends Deponent to appear and testify as an individual. As such, the deposition notice is proper notwithstanding the reference to section 2025.230.

Paragon also argues various statements in the deposition notice are improper.

Notwithstanding such statements, the notice suffices to compel Deponent to appear and to testify at the deposition.

Deponent's appearance will not constitute a stipulation to any terms inserted in the deposition notice which require waiver of any valid objections or to payment of fees to which Ledesma would not otherwise be entitled.

The Court finds Paragon filed this motion without substantial justification such that sanctions are warranted. (§ 2025.420, subd. (h).) The Court imposes sanctions against Paragon and its counsel of record, Pacific Business Law, APC, in the amount of \$1,000, which represents four hours of attorney time to prepare the opposition and attend the hearing at \$250 per hour. Paragon and its counsel of record, jointly and severally, are to pay sanctions in the amount of \$1,000 to Ledesma, by and through counsel, within 30 days of the notice of this order.

Ledesma is to give notice of the Court's ruling and to file proof of service of same.

[1]All

statutory references hereafter are to the Code of Civil Procedure, unless otherwise indicated.